

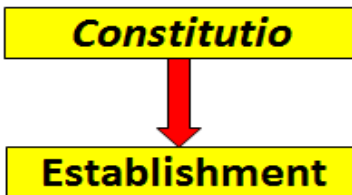
CONSTITUTION OF INDIA, LAW & ENGINEERING (KNC 501)

Module 1

Introduction and Basic Information about Indian Constitution

❖ Meaning of the Constitution Law and Constitutionalism

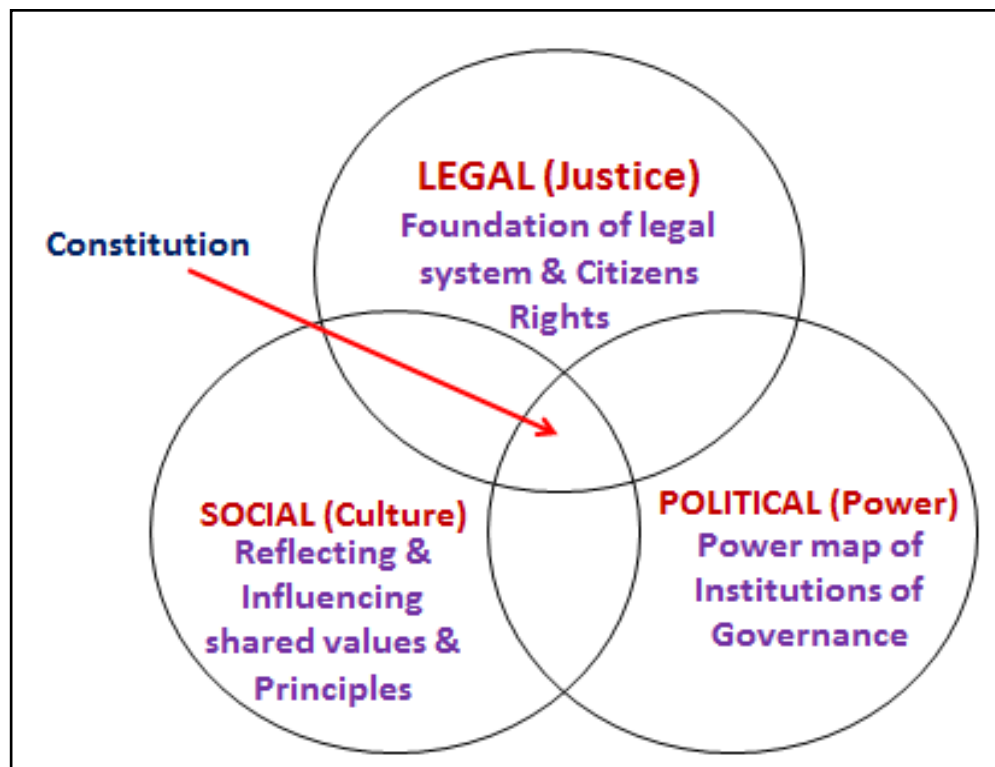
The word Constitution derived from Latin word “**Constitutio**”.



Constitution: A Constitution can be defined as the fundamental laws custom, conventions, rules & regulations, stipulating how a country is governed.

OR

“Constitution is a charter of Govt. deriving its whole authority from the governed”



Constitutional Law: The rule which regulates the Structure of the principal organs of the Govt. & their relationship to one another, and determines their principal functions.

Constitutionalism: It can be defined as a principle which is not just a constitution but put limitations to the activities of individuals and the Govt.

OR

Constitutionalism means limited Govt. or limitation on Govt.

❖ **Historical Background of the Constituent Assembly**

- The history of the Constitution of India is **very insightful** as it explains exactly how it came into being.
- It also explains why India chose the Parliamentary form of democracy in its modern form.
- The British came to India in the **17th century initially** for trading only. Eventually, after slowly gaining more power, they attained the rights to collect revenue and govern themselves.
- In order to do this, they enacted various laws, rules and regulations.
- The constituent assembly was elected indirectly by the members of the Provincial legislative assembly, which existed under the British Raj.
- On **August 15, 1947**, India became an independent nation, and the Constituent Assembly started functioning as India's Parliament.
- **Dr. B. R. Ambedkar** (Father of the Constitution) drafted the Constitution of India in conjunction with the requisite deliberations and debates in the Constituent Assembly.
- The Assembly approved the Constitution on **November 26, 1949** (celebrated as Constitution Day), and it took effect on **January 26, 1950** — a day now commemorated as Republic Day in India.

We can Broadly divide the period as follows:

1600-1765	The Coming of the British
1765-1858	Beginning of the British Rule
1858-1919	End of Company's Rule
1919-1947	Introduction of Self-Government
1947-1950	The Framing of the New Constitution

Government of India Act of 1935

- The enactment of this law is one of the most important events in the history of the Constitution.
- The Government of India Act was passed by the British Parliament in August 1935.
- It was the longest act enacted by the British Parliament at that time.
- So, it was divided into two separate acts namely, the Government of India Act 1935 and the Government of Burma Act 1935.

Overview: Government of India Act 1935

Aim	An Act to make further provision for the Government of India
Territorial Extent	Territories under direct British control
Enacted By	Parliament of United Kingdom
Royal Assent	24th July 1935
Commenced	1st April 1937
Status	Repealed on 26th January 1950 in India

Government of India Act, 1935 – Background

1. There was a growing demand for constitutional reforms in India by Indian leaders.
2. India's support to Britain in the First World War also aided in British acknowledgement of the need for the inclusion of more Indians in the administration of their own country.
3. The Act was based on:
 - Simon Commission Report
 - The recommendations of the Round Table Conferences
 - The White Paper published by the British Govt. in 1933
 - Report of the Joint Select Committees

How Government of India Act 1935 divided powers?

1. This Act divided powers between the Centre and the provinces.
2. There were three lists which gave the subjects under each government.
 - Federal List (Centre)
 - Provincial List (Provinces)
 - Concurrent List (Both)
3. The Viceroy was vested with residual powers.

Certain changes that were brought through the government of India Act, 1935 are mentioned below:

1. Provincial autonomy
2. Diarchy at the Centre
3. Bicameral legislature
4. Federal court
5. Indian Council
6. Franchise
7. Reorganization

1. Provincial Autonomy:

- The Act gave more autonomy to the provinces.
- Diarchy was abolished at the provincial levels.
- The Governor was the head of the executive.
- There was a Council of Ministers to advise him. The ministers were responsible to the provincial legislatures who controlled them. The legislature could also remove the ministers.
- However, the governors still retained special reserve powers.
- The British authorities could still suspend a provincial government.

2. Diarchy at the Centre:

- The subjects under the Federal List were divided into two: Reserved and Transferred.
- The **Reserved subjects** were controlled by the Governor-General who administered them with the help of three counsellors appointed by him. They were not responsible to the legislature. These subjects included defense, ecclesiastical affairs (church-related), external affairs, press, police, taxation, justice, power resources and tribal affairs.
- The **Transferred subjects** were administered by the Governor-General with his Council of Ministers (not more than 10). The Council had to act in confidence with the legislature. The subjects in this list included local government, forests, education, health, etc.
- However, the Governor-General had 'special powers' to interfere in the transferred subjects also.

3. Bicameral Legislature:

- A bicameral federal legislature would be established.
- The two houses were the Federal Assembly (lower house) and the Council of States (upper house).
- The federal assembly had a term of five years.
- Both houses had representatives from the princely states also. The representatives of the princely states were to be nominated by the rulers and not elected. The representatives of British India were to be elected. Some were to be nominated by the Governor-General.

- There were to be separate electorates for the minority communities, women and the depressed classes.
- Bicameral legislatures were introduced in some provinces also like Bengal, Madras, Bombay, Bihar, Assam and the United Provinces.

4. Federal Court:

- A federal court was established at Delhi for the resolution of disputes between provinces and also between the centre and the provinces.
- It was to have 1 Chief Justice and not more than 6 judges.

5. Indian Council:

- The Indian Council was abolished.
- The Secretary of State for India would instead have a team of advisors.

6. Franchise:

- This Act introduced direct elections in India for the first time.
- About 10% of the whole population acquired voting rights.

7. Reorganization:

- **Sindh** was carved out of Bombay Presidency.
- **Bihar** and **Orissa** were split.
- **Burma** was severed off from India.
- Aden was also separated from India and made into a Crown colony.

Other Points:

- The British Parliament retained its supremacy over the Indian legislatures both provincial and federal.
- A **Federal Railway Authority** was set up to control Indian railways.
- The **Reserve Bank of India (RBI)** was established as per this Act.
- The Act also provided for the establishment of federal, provincial and joint Public Service Commissions.
- The Act was a milestone in the development of a responsible constitutional Govt in India.

- The Government of India Act 1935 was replaced by the Constitution of India after independence.
- The Indian leaders were not enthusiastic about the Act since despite granting provincial autonomy the governors and the viceroy had considerable 'special powers'.
- Separate communal electorates were a measure through which the British wanted to ensure the Congress Party could never rule on its own. It was also a way to keep the people divided.

Indian Independence Act of 1947

- Lord Mountbatten (India's last viceroy) proposed a plan in May 1947 according to which provinces were to be declared independent successor states with the power to choose whether to join the constituent assembly or not.

Mountbatten Plan Background:

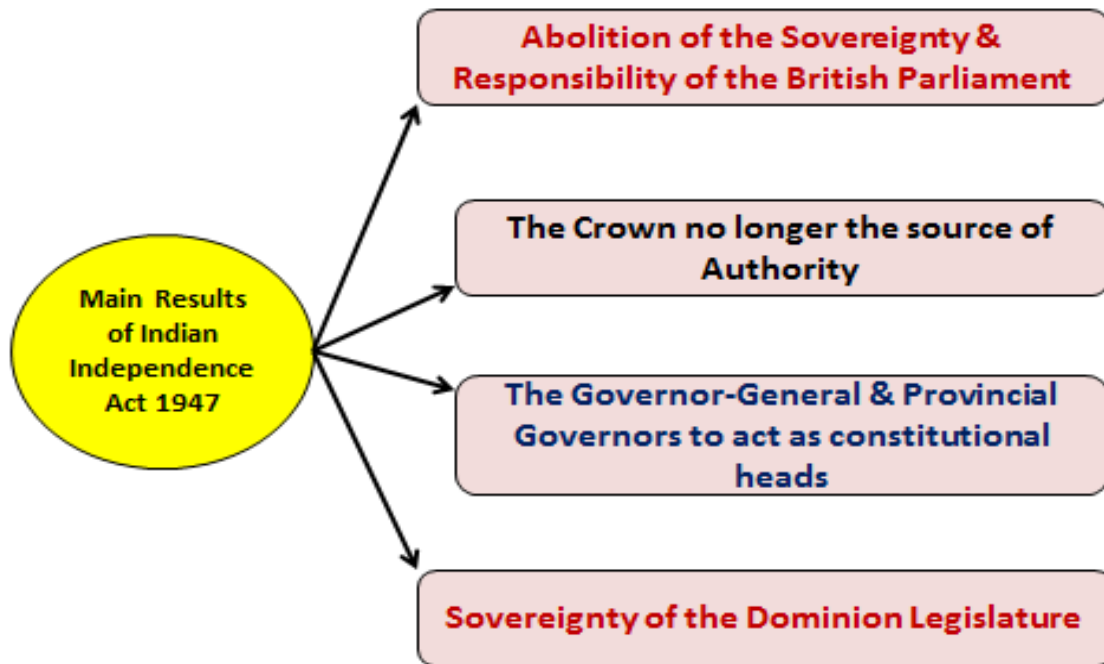
- Lord Mountbatten came to India as the last Viceroy and was assigned the task of a speedy transfer of power by the then British Prime Minister Clement Atlee.
- In May 1947, Mountbatten came up with a plan under which he proposed that the provinces be declared independent successor states and then be allowed to choose whether to join the constituent assembly or not. This plan was called the 'Dickie Bird Plan'.
- Jawaharlal Nehru, when apprised of the plan, vehemently opposed it saying it would lead to balkanisation of the country. Hence, this plan was also called Plan Balkan.
- Then, the viceroy came up with another plan called the June 3 Plan. This plan was the last plan for Indian independence. It is also called the Mountbatten Plan.
- The June 3 Plan included the principles of partition, autonomy, sovereignty to both nations, right to make their own constitution.
- Above all, the Princely States such as Jammu and Kashmir were given a choice to either join India or Pakistan. The consequences of these choices would affect the new nations for decades to come.

- This plan was accepted by both the Congress and the Muslim League. By then, the Congress had also accepted the inevitability of the partition.
- This plan was put into action by the Indian Independence Act 1947 which was passed in the British Parliament and received the royal assent on 18 July 1947.

Provisions of the Mountbatten Plan:

- British India was to be partitioned into two dominions – India and Pakistan.
- The constitution framed by the Constituent Assembly would not be applicable to the Muslim-majority areas (as these would become Pakistan). The question of a separate constituent assembly for the Muslim-majority areas would be decided by these provinces.
- As per the plan, the legislative assemblies of Bengal and Punjab met and voted for the partition. Accordingly, it was decided to partition these two provinces along religious lines.
- The legislative assembly of Sind would decide whether to join the Indian constituent assembly or not. It decided to go with Pakistan.
- A referendum was to be held on NWFP (North-Western Frontier Province) to decide which dominion to join. NWFP decided to join Pakistan while Khan Abdul Gaffar Khan boycotted and rejected the referendum.
- The date for the transfer of power was to be **August 15, 1947**.
- To fix the international boundaries between the two countries, the Boundary Commission was established chaired by Sir Cyril Radcliffe. The commission was to demarcate Bengal and Punjab into the two new countries.
- The princely states were given the choice to either remain independent or accede to India or Pakistan. The British suzerainty over these kingdoms was terminated.
- The British monarch would no longer use the title '**Emperor of India**'.
- After the dominions were created, the British Parliament could not enact any law in the territories of the new dominions.
- Until the time the new constitutions came into existence, the Governor-General would assent any law passed by the constituent assemblies of the dominions in His Majesty's name. The Governor-General was made a constitutional head.

- On the midnight of **14th and 15th August 1947**, the dominions of Pakistan and India respectively came into existence. **Lord Mountbatten was appointed the first Governor-General of independent India and M. A. Jinnah became the Governor-General of Pakistan.**



Indian Constitution and its Salient Features

INTRODUCTION:

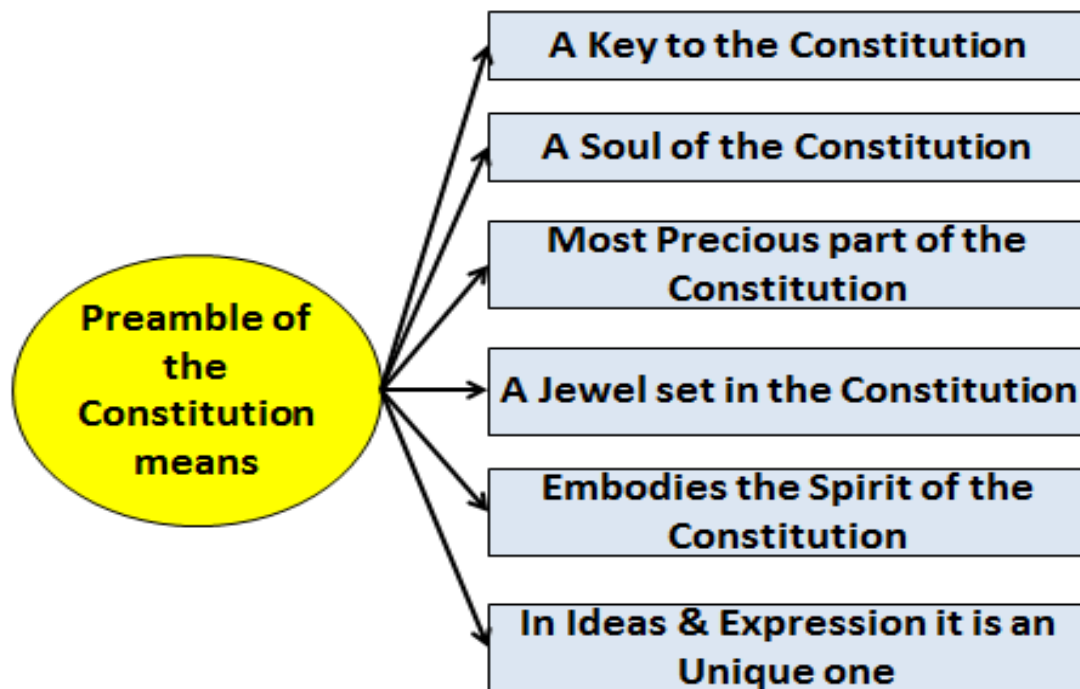
- The Indian Constitution is unique in its contents and spirit.
- It is one of the most comprehensive documents of its kind. Apart from being the longest, it is also famous for containing all minute details governing the Indian state.
- Though borrowed from almost every constitution of the world, the constitution of India has several salient features that distinguish it from the constitutions of other countries.
- 42nd Amendment Act (1976) is known as 'Mini-Constitution' due to the important and large number of changes made by it in various parts of the Constitution.

SALIENT FEATURES OF THE CONSTITUTION:

1. Longhiest Written Constitution
2. Drawn From Various Sources
3. Blend of Rigidity and Flexibility
4. Federal System with Unitary Bias
5. Parliamentary Form of Government
6. Synthesis of Parliamentary Sovereignty and Judicial Supremacy
7. Integrated and Independent Judiciary
8. Fundamental Rights
9. Directive Principles of State Policy
10. Fundamental Duties
11. A Secular State
12. Universal Adult Franchise
13. Single Citizenship
14. Independent Bodies
15. Emergency Provisions
16. Three-tier Government
17. Co-operative Societies

The Preamble of the Constitution

- A preamble is an introductory statement in a document that explains the document's philosophy and objectives.
- In a Constitution, it presents the
 - intention of its framers,
 - the history behind its creation, and
 - the core values and principles of the nation.



The preamble basically gives idea of the following things/objects:

- Source of the Constitution
- Nature of Indian State
- Statement of its objectives
- Date of its adoption

History of the Preamble to Indian Constitution:

- The ideals behind the Preamble to India's Constitution were laid down by **Jawaharlal Nehru's Objectives Resolution**, adopted by the Constituent Assembly on **January 22, 1947**.

Components of Preamble

- It is indicated by the Preamble that the source of authority of the Constitution lies with the people of India.
- Preamble declares India to be a **Sovereign, Socialist, Secular and Democratic republic**.
- The objectives stated by the Preamble are to secure justice, liberty, equality to all citizens and promote fraternity to maintain unity and integrity of the nation.

Objectives of the Indian Constitution

- The main objective of the Indian Constitution is to **promote harmony throughout the nation**.

The factors which help in achieving this objective are:

- **Justice**
 - Social Justice
 - Economic Justice
 - Political Justice
- **Equality** of Status & Opportunity
- **Liberty** of thought, expression, belief, faith & worship
- **Fraternity** assuring dignity of the individual & unity; integrity of the nation.

Components of Preamble

1. SOVEREIGN :

- 'Sovereign' means that India has its own independent authority
- People have supreme right to make decision on internal as well as external matters.
- No external power can dictate the government of India.

2. SOCIALIST:

- Wealth is generated socially and should be shared equally to the society. The Govt. tries to reduce the inequalities.

3. SECULAR:

- The people have the freedom to follow any religion. In India there is no official religion.
- Govt. treating all the religions equally.

4. DEMOCRATIC:

- A form of Govt, enjoy the equal political rights, elected their leaders and hold them accountable.

5. REPUBLIC:

- The head of the state is an elected person and not a hereditary position.

6. JUSTICE:

- People cannot be discriminated on the base of caste, religion and gender. Govt should working for the welfare of the state.

7. LIBERTY:

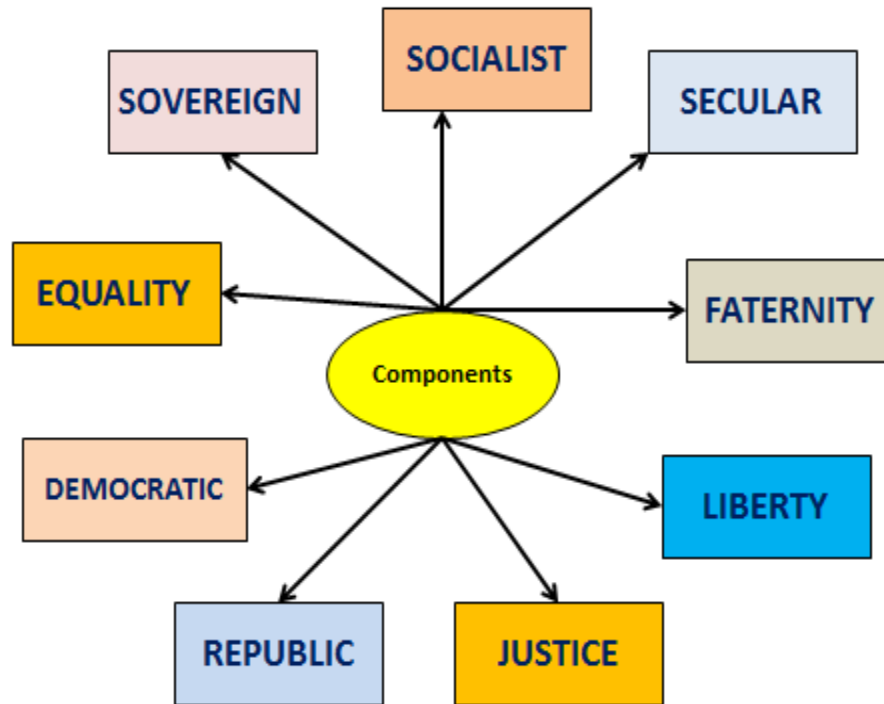
- No unreasonable restrictions on the citizens in what they think, how they wish to express their thoughts and the way they wish to follow up their thoughts in action.

8. EQUALITY:

- All are equal before law.
- The Govt should ensure the equal opportunities for all.

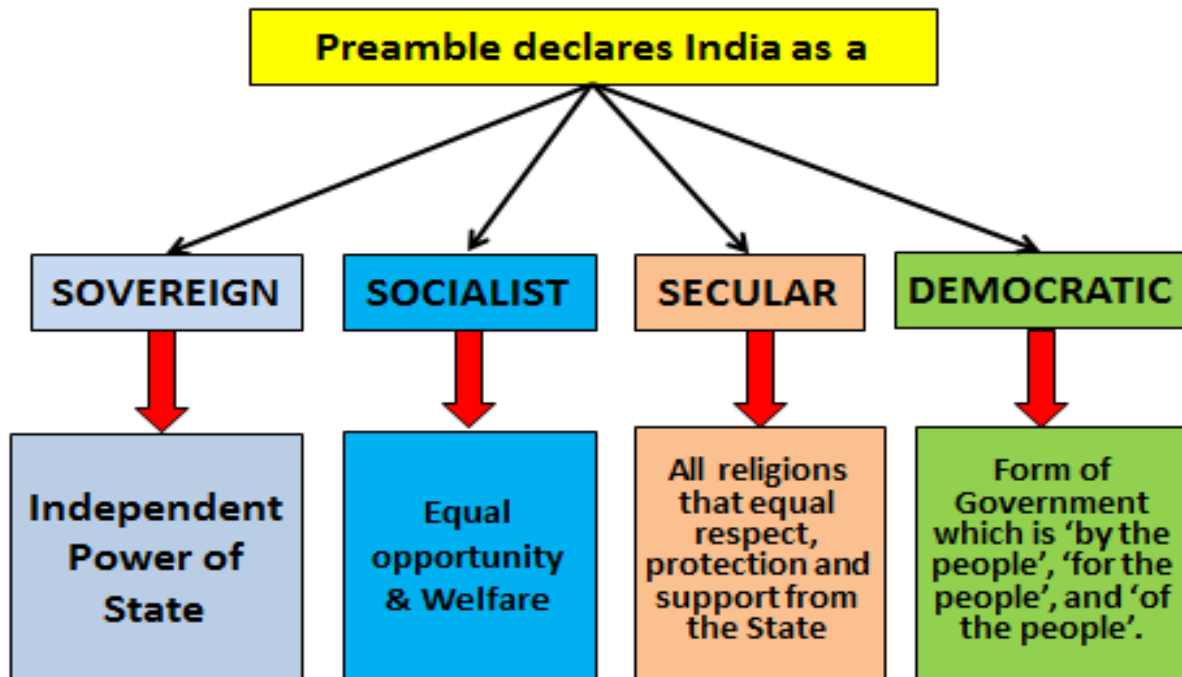
9. FRATERNITY:

- All of us should behave as if we are members of same family.
- No one should treat a fellow citizen as inferior.



Significance of Preamble:

- It provides a way of life. It includes fraternity, liberty, and equality as the notion of a happy life and which cannot be taken from each other.
- It acts as the preface of the constitution of India and lays down the fundamental values & philosophical Ideas.
- It represents the entire constitution in its written words.
- The Preamble doesn't contain laws enforceable in a court but No law can be enacted or amended in a manner that violets the spirit of the preamble.
- Thus the Preamble of the Constitution of India is unamendable and unalterable.
- It reflects the basic Structure and the spirit of the Constitution.



THE CONSTITUTION OF INDIA PREAMBLE

WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a **SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC** and to secure to all its citizens:

JUSTICE, social, economic and political;

LIBERTY of thought, expression, belief, faith and worship;

EQUALITY of status and of opportunity and to promote among them all;

FRATERNITY assuring the dignity of the individual and the unity and integrity of the Nation;

IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949, do **HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION.**

Fundamental Rights, Duties & Directive Principles of State Policy

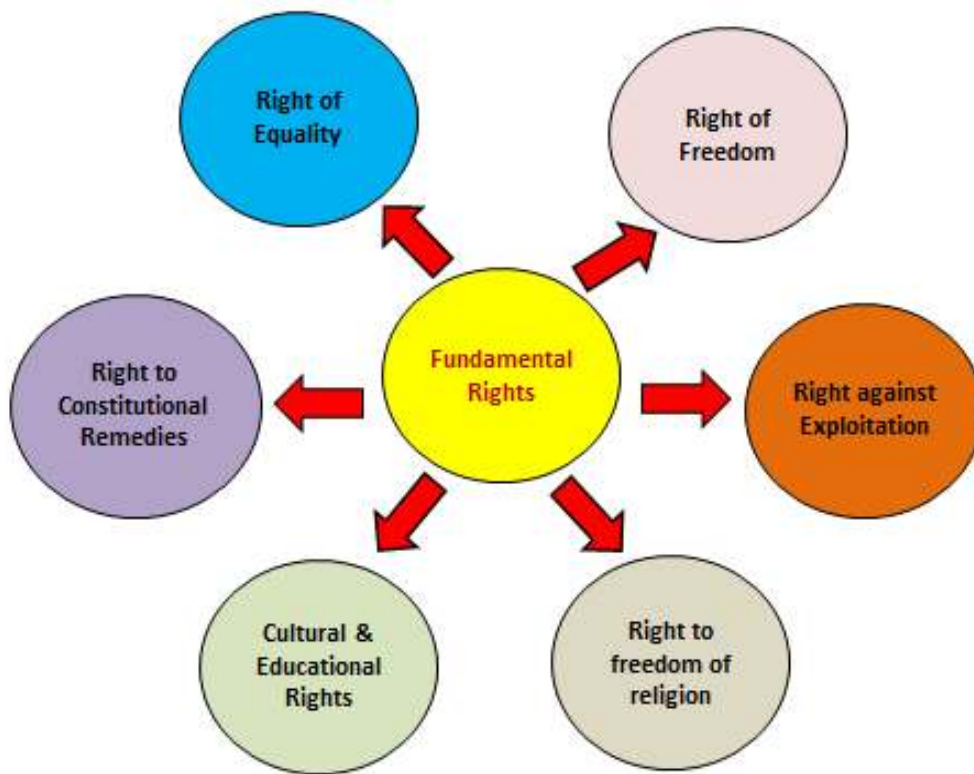
- During the period of 1947 to 1949, Constitution of India developed and prescribed the fundamental obligations of the State to its citizens and the duties and the rights of the citizens.
- These were developed under the following sections which constitute the vital elements of the constitution.
 - Fundamental Rights
 - Fundamental Duties
 - Directive Principles of State Policy

Fundamental Rights

- The fundamental rights definition says that “these are the basic human rights of all citizens, defined in Part III of the Constitution”.
- These are applicable irrespective of race, place of birth, religion, caste, creed, or gender.
- According to the Constitution, every Citizen has certain Rights known as Fundamental Rights of a Citizen & the Constitution guarantees every citizen of those.

Following are some of the important rights of the citizens of India in accordance with the Constitution:

- Right to Equality
- Right to freedom
- Right against exploitation
- Right to freedom of religion
- Cultural and Educational Rights
- Right to Constitutional Remedies



Right to Equality:

- All people are equal before the law.

Right of Freedom:

- A Citizen is given the right of Freedom of Speech & Expression.
- To assemble peacefully anywhere without Arms.
- To Form Associations & Unions.
- To move in any part of the Country.
- To reside in any part of the country.
- To take up any occupation trade & business in any part of Indian Territory & the right of education.

Right against Exploitation:

- Children Below 14 years of age should not be allowed to work in factories & Mines.

- People should live a life with dignity.

Right to Freedom of Religion:

- India being a secular State, all Religions are treated equally.

Cultural & Educational Right:

- There is a lot of Diversity in India so people have a right to preserve & promote their own language & culture.

Right to Constitutional Remedies:

- All Citizens can move to the Court if his/her fundamental right deprived in any way.

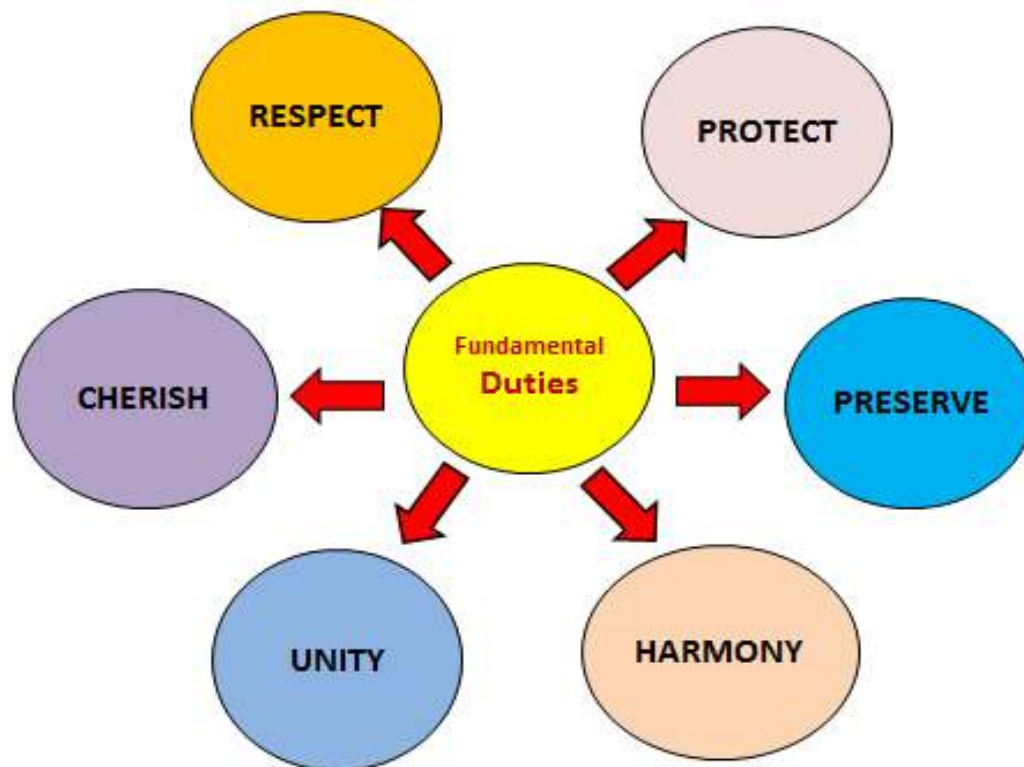
Fundamental Duties

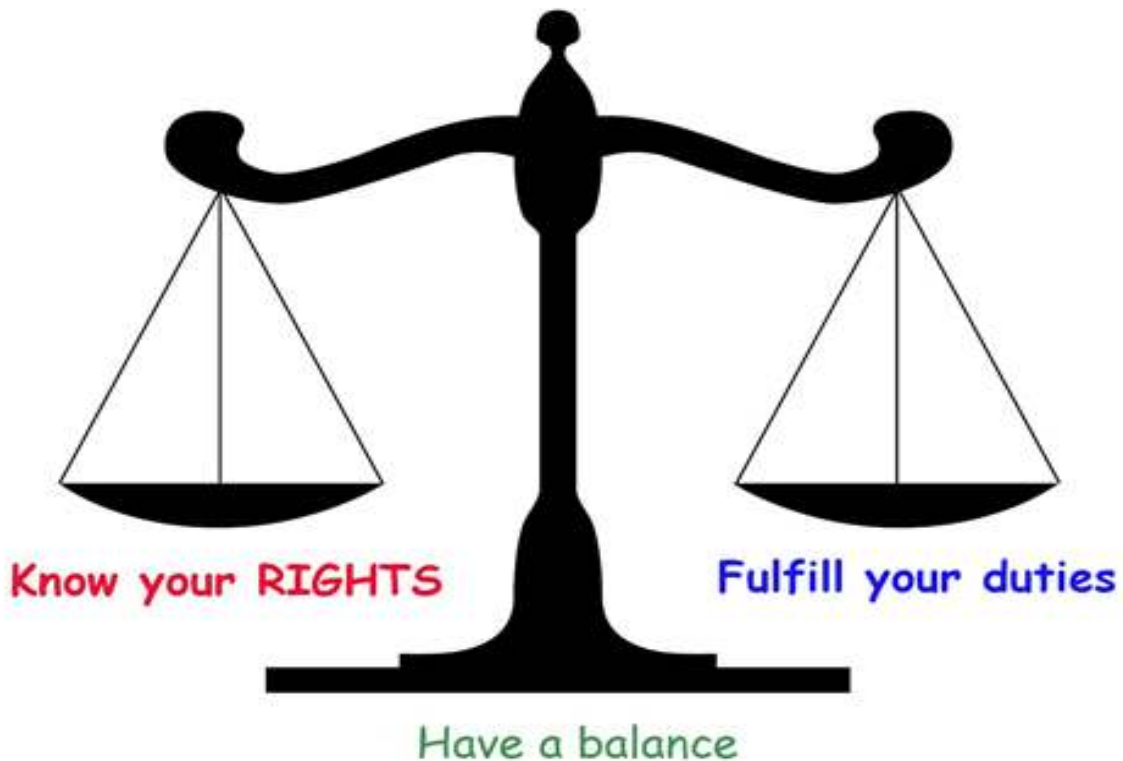
- These are defined as “the moral obligations of all citizens to help promote a spirit of patriotism and to uphold the unity of India and concern the individuals and the nation”.
- Included in Part IVA of the Constitution, like the Directive Principles, they are not enforceable by the law.

According to the constitution, let us have a look at the following information on duties to be followed by every citizen of India:

- To abide by the Constitution and respect its ideals and institutions, the National Flag and the National Anthem.
- To cherish and follow the noble ideals which inspired our national struggle for freedom.
- To uphold and protect the sovereignty, unity, and integrity of India.
- To defend the country and render national service for the nation's security when called upon to do so.
- To promote harmony and the spirit of common brotherhood amongst all the people of India transcending religious, linguistic, social and regional or sectional diversities; to renounce practices derogatory to the dignity of women.
- To value and preserve the rich heritage of our composite culture.

- To protect and improve the natural environment including forests, lakes, rivers, wildlife and to have compassion for living creatures.
- To develop the scientific temper, humanism and the spirit of inquiry and reform.
- To safeguard public property and to abjure violence.
- To strive towards excellence in all spheres of individual and collective activity, so that the nation constantly rises to higher levels of endeavor and achievement.
- Who is a parent or guardian, to provide opportunities for education to his child, or as the case may be, ward between the age of six to fourteen years.
- According to the 86th constitutional amendment in 2002, it is the duty of the people of India to adapt to make India a safer place to live, to be clean and make the surrounding clean and not to hurt anybody physically and mentally.





Directive Principles of State Policy (DPSP)

- Directive Principles of State Policy aim to create social and economic conditions under which the citizens can lead a good life.
- They also aim to establish social and economic democracy through a welfare state.
- These provisions contained in Part IV (Article 36–51) of the Constitution of India.

Directive Principles are classified under the following categories:

- Economic & Socialistic,
- Political & Administrative,
- Justice & Legal,
- Environmental,
- Protection of Monuments, Peace and Security.

Overview:

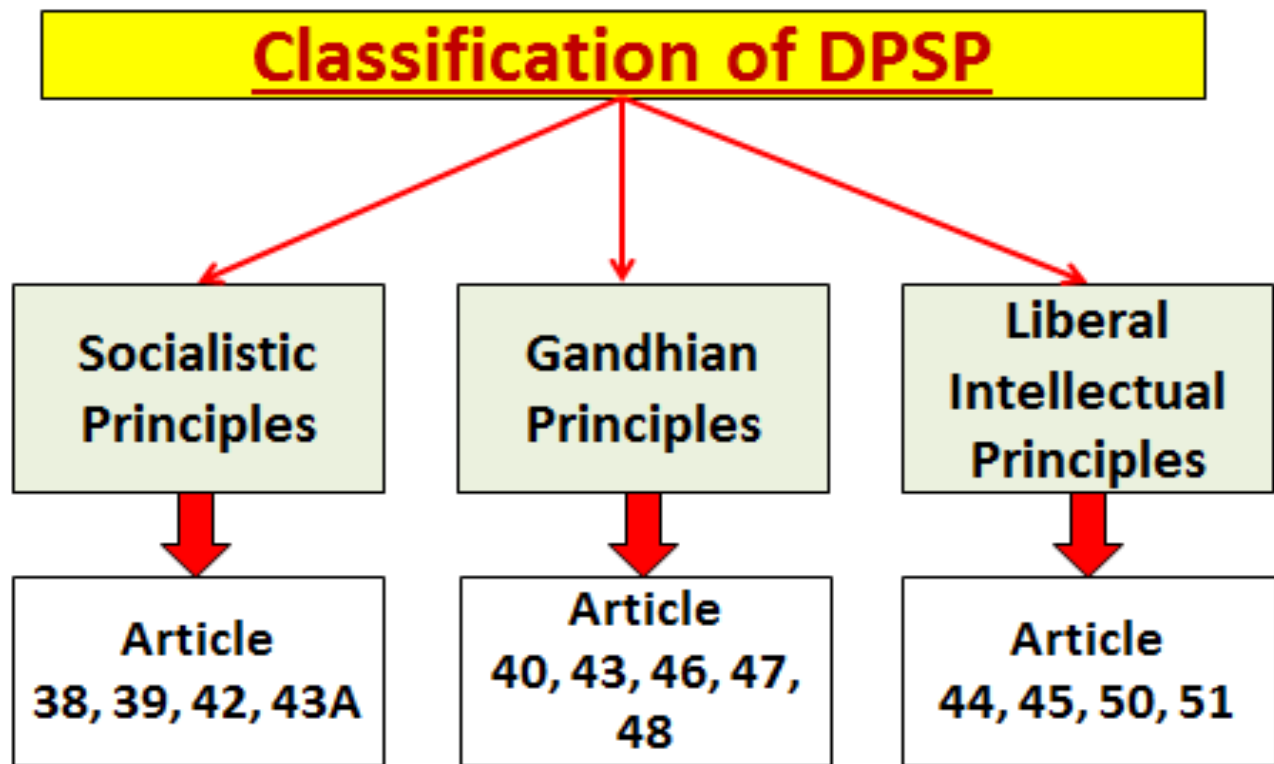
- Part IV
- Article 36-51
- Borrowed from 'Irish Constitution'
- DPSP are **not enforceable** in court
- Dr. B.R. Ambedkar describes these principles as "Novel feature" of the Constitution of India.

➤ Directive Principle + Fundamental Rights = The Philosophy of the Constitution & the Soul of the Constitution.

- It embodies the concept of Welfare State.

Importance of DPSP:

- These Principles are directive to States.
- Lay Down the foundation of Economic Democracy.
- These are the measuring parameters to judge the achievements of Govt.
- They establish welfare State.
- These are the fundamental in the Governance of the Country.
- These Principles supplement Fundamental Rights.
- Guiding Principles of Court.
- They bring stability & continuity in State Policies.
- Educative Value of Directive Principles.



Socialistic Principles:

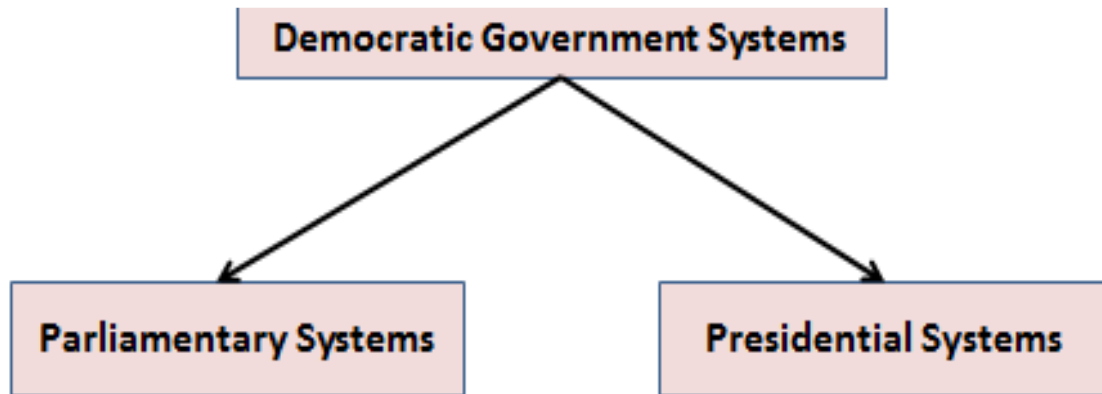
- These principles contemplate the ideology of socialism and lay down the framework of a democratic socialist state.
- The concept envisages providing social and economic justice, so that state should achieve the optimum norms of welfare state.

Gandhian Principles:

- These principles reflect the programme of reconstruction enunciated by Gandhi during the national movement. In order to fulfill the dreams of Gandhi, some of his ideas were included in DPSP

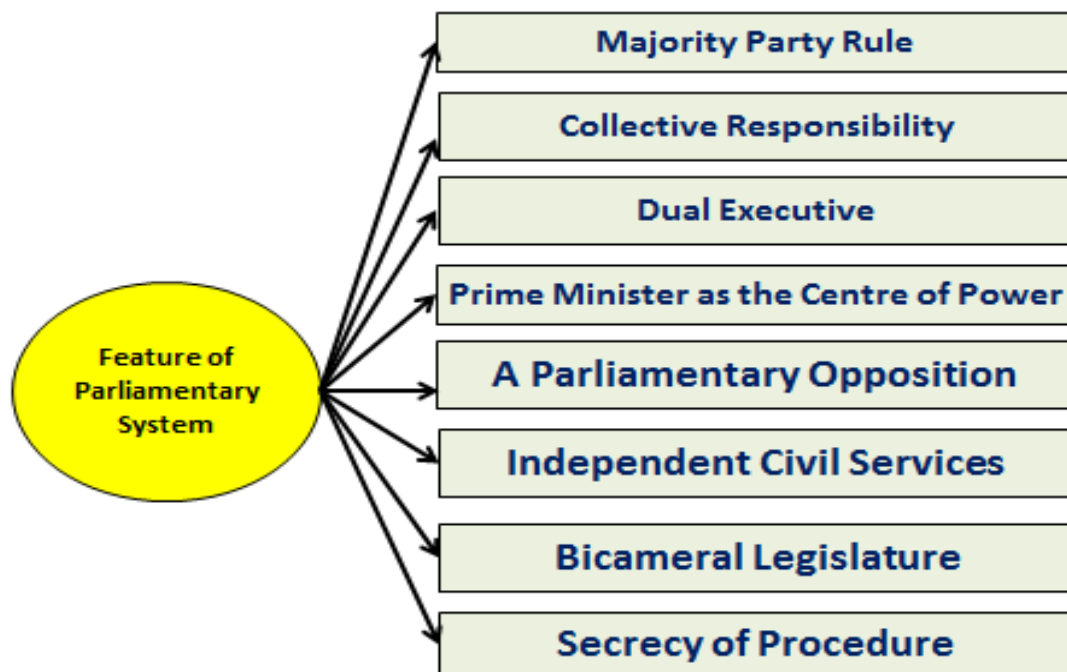
Liberal Intellectual Principles:

- These principles inclined towards the ideology of liberalism.



Parliamentary System

- India has a parliamentary system of Government.
- Article 74 and Article 75 deal with the parliamentary system at the Centre and Articles 163 and 164 deals with the States.
- In a Parliamentary system, the head of the state may be a Monarch or a President, but both of these positions are ceremonial.
- The head of the government, who is generally called as the Prime Minister, is the real head. Thus, all the real executive powers are vested in the Prime Minister.
- The Parliamentary Govt. is also called as the **Cabinet government** due to concentration of executive powers in the cabinet.



Merits of Parliamentary System:

The advantages of the parliamentary system are as follows:

- Better coordination between the executive and the legislature
- Prevents authoritarianism
- Responsible government
- Representing diverse groups
- Flexibility

Demerits of Parliamentary System

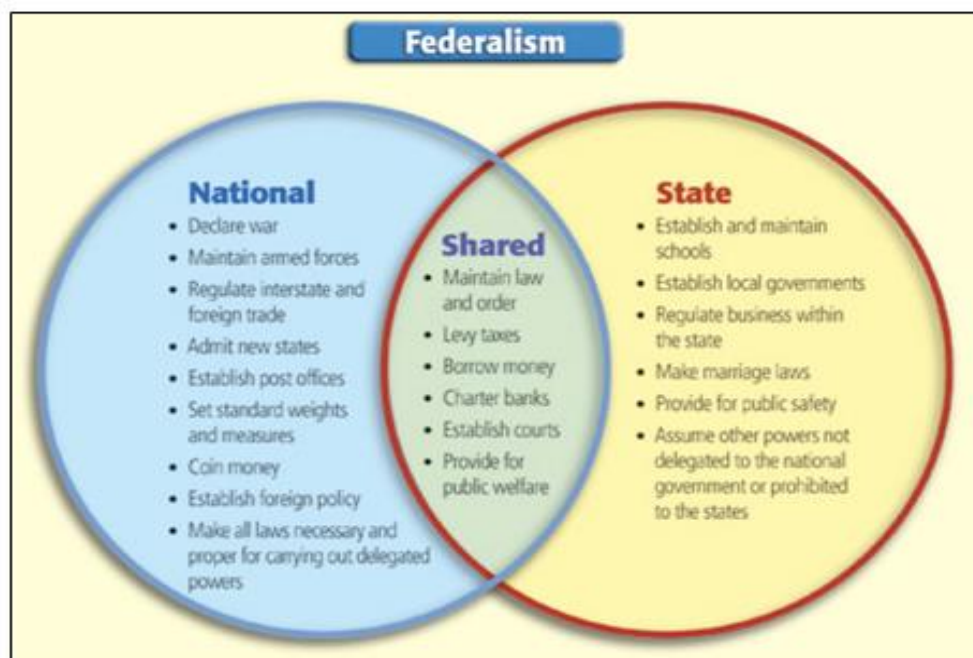
- No separation of powers
- Unqualified legislators
- Instability
- Ministers
- Failure to take a prompt decision
- Party politics
- Control by the Bureaucracy

Comparison of Presidential and Parliamentary Systems		
Basis	Parliamentary	Presidential
Executive	Dual	Single
Accountability	Executive Accountable to legislature	Executive not Accountable to legislature
Ministers	Only from among MPs	People outside the legislature can be appointed
Dissolution of Lower House	PM can dissolve before the expiry of the term	President cannot resolve
Tenure	Not Fixed	Fixed

Federal System



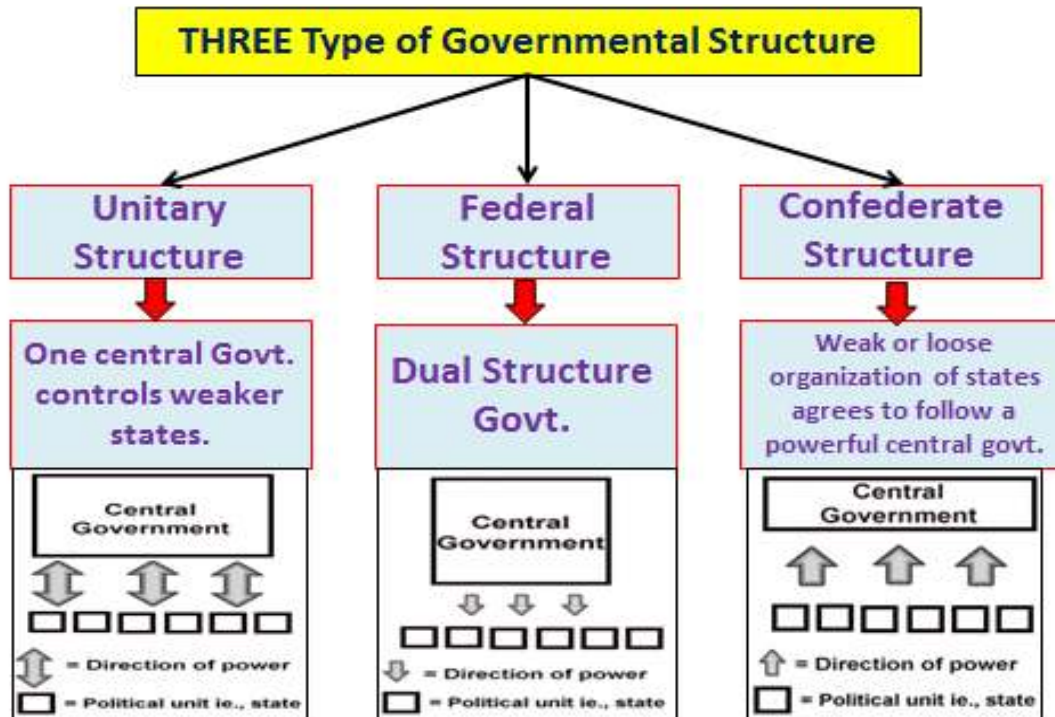
- In **Federal systems**, political authority is **divided between two autonomous sets of governments**, one national and the other subnational.
- Both of which operate directly upon the people.
- Entire power is not concentrated with one government.
- All levels of governance will govern the same citizens, but their jurisdiction will be different.
- Each level of government will have a specific power to form laws, legislate and execute these laws.
- Federalism of a country must be prescribed by the constitution.
- Amendments to the important and essential provisions of the constitution must be approved by all the levels of the government.
- Powers and Duties of both or all Governments must be listed down in the constitution of that country hence guaranteeing a federal system of governance.



- Central government can be powerful, but does not have the ability to dissolve states or choose state leaders.

Example of Federal Structure Governance Country:

India, Nepal, Pakistan, Nigeria, Brazil, Mexico, Russia, Germany, Canada, Switzerland, Argentina, Nigeria, Sudan, Australia etc.....



Necessary Condition:

- Need for defense and security
- Preservation of local autonomy
- Differences in level of economic development
- The need to check dictatorship
- Common culture and historical background
- Resource Pooling
- Geographical nearness
- Existence of adequate economic resources

Centre-State Relation

- India is a **Union of States**.
- The constitution of India has divided the legislative, executive and financial powers between the centre and the states, which gives the constitution a federal character whereas judiciary is integrated in a hierarchical structure.

The Centre-state relations are divided into three parts, which are mentioned below:

(A) Legislative Relations (Article 245-255)

(B) Administrative Relations (Article 256-263)

(C) Financial Relations (Article 268-293)

(A) Legislative Relations (Article 245-255):

Articles 245 to 255 in Part XI deals with different aspects of legislative relations between Centre and States. These include:

- (1) Territorial jurisdiction of laws made by the Parliament and by the Legislatures of States.
- (2) Distribution of legislative subjects.
- (3) Power of parliament to legislate with respect to a matter in the State List.
- (4) Centre's control state legislation.
 - However, Seventh Schedule of the Constitution provides for the distribution of legislative powers between the Centre and the States. The legislative subjects are divided into List I (the Union List), List II (the Concurrent List) and List III (the State List).

Union List:

- At present, there are 100 subjects in this list.
- The list includes subjects such as foreign affairs, defense, railway, postal services, banking, atomic energy, communication, currency etc.

State List:

- At present, there are 61 subjects in this list.

- The list includes subjects such as police, public order, roadways, health, agriculture, local government, drinking water facilities, sanitation etc.

Concurrent List:

- At present, there are 52 subjects in this list.
- The list includes subjects such as education, forests, protection of wild animals and birds, electricity, labour welfare, criminal law and procedure, civil procedure, population control and family planning, drugs etc.

(B) Administrative Relations (Article 256-263):

- **Article 256 to 263** deals with the administrative relations between the Centre and the States.
- **Article 256** states that "the executive power of every State shall be so exercised as to ensure compliance with the laws made by the parliament and any existing laws which apply in that State, and the executive power of the Union shall extend to the giving of such directions to a State as may appear to the Government of India to be necessary for that purpose".

(C) Financial Relations (Article 268-293):

The Constitution deals with the Centre-State financial relations in **Article 268-293 of Part XII**.

The Constitution has provided the union government and the state governments with the independent sources of revenue. It allocates the powers to Centre and the states in the following way:

- (i) The parliament has exclusive power to levy taxes on the subjects mentioned in the Union List.
- (ii) The state legislatures has exclusive power to levy taxes on the subjects mentioned in the State List.
- (iii) Both the parliament and the state legislature are empowered to levy taxes on the subjects mentioned in the Concurrent List.
- (iv) The parliament has exclusive power to levy taxes on the matters related to the residuary subjects.

Amendment of the Constitutional Powers and Procedure

Article 368 of Part XX of the Indian Constitution mentions three types of amendments to the Indian Constitution.

1. By a Simple majority of Parliament.
2. By a Special majority of Parliament.
3. By a Special majority of the Parliament with the ratification by half of the total states.

1. By a Simple majority of Parliament:

A number of provisions in the Constitution can be amended by a simple majority of the two houses of Parliament outside the scope of Article 368. These provisions include:

- Admission or establishment of new states.
- Formation of new states and alteration of areas, boundaries or names of existing states.
- Abolition or creation of legislative councils in states.
- Second Schedule-emoluments,
- Allowances, privileges and so on of the president, the governors, the Speakers, judges, etc.
- Quorum in Parliament.
- Salaries and allowances of the members of Parliament.
- Rules of procedure in Parliament.
- Privileges of the Parliament, its members and its committees.
- Use of the English language in Parliament.
- Number of puisne judges in the Supreme Court.
- Conferment of more jurisdictions on the Supreme Court.
- Citizenship-acquisition and termination.
- Elections to Parliament and state legislatures.
- Delimitation of constituencies.
- Union territories
- Fifth Schedule-administration of scheduled areas and scheduled tribes.

2. By a Special majority of Parliament.

- It means majority (that is, more than 50 percent) of the total membership of each House and a majority of two-thirds of the members of each House present and voting.
- The expression 'total membership' means the total number of members comprising the House irrespective of the fact whether there are vacancies or absentees.
- The special majority is required only for voting at the third reading stage of the bill but by way of abundant caution, the requirement for the special majority has been provided for in the rules of the Houses in respect of all the effective stages of the bill.

The provisions which can be amended by this way include:

- (i) Fundamental Rights;
- (ii) Directive Principles of State Policy; and
- (iii) All other provisions which are not covered by the first and third categories.

3. By a Special majority of Parliament.

- Those provisions of the Constitution which are related to the federal structure of the polity can be amended by a special majority of the Parliament and also with the consent of half of the state legislatures by a simple majority.

The following provisions can be amended in this way:

- Election of the President and its manner.
- Extent of the executive power of the Union and the states.
- Supreme Court and high courts.
- Distribution of legislative powers between
- The Union and the states.
- Any of the lists in the Seventh Schedule.
- Representation of states in Parliament.
- Power of Parliament to amend the Constitution and its procedure (Article 368 itself).

EMERGENCY PROVISION

- A state of emergency in India refers to “a period of governance that can be proclaimed by the President of India during certain crisis situations”.
- Under the advice of the cabinet of ministers, the President can overrule many provisions of the Constitution, which guarantees Fundamental Rights to the citizens of India.
- The emergency provisions are contained in **Part XVIII** of the Constitution of India, **from Article 352 to 360.**
- These provisions enable the Central government to meet any abnormal situation effectively.

The Constitution stipulates three types of emergencies:

1. National Emergency
2. Constitutional Emergency
3. Financial Emergency

1. National Emergency:

- Article 352
- due to War (External Emergency), External Aggression, Armed Rebellion (Internal Emergency);
- The Constitution employs the expression ‘proclamation of emergency’ to denote an emergency of this type.

Grounds of declaration:

- The President can declare a national emergency even before the actual occurrence of war or armed rebellion or external aggression
- When a national emergency is declared on the grounds of ‘war’ or ‘external aggression’, it is known as ‘External Emergency’. On the other hand, when it is declared on the grounds of ‘armed rebellion’, it is known as ‘Internal Emergency’.

Effects of national emergency:

- Effects on the Centre-State relations
- Effect on the life of the Lok Sabha and State Assembly
- Effect on fundamental rights

Parliamentary approval and duration

- The proclamation of emergency must be approved by both the houses of parliament within one month from the date of its issue.
- If approved by both the houses, the Emergency continues for 6 months and can be extended to an indefinite period with an approval of the Parliament for every six months.

2. Constitutional Emergency (Presidents Rule, State Emergency):

- **Article 356**
- due to failure of constitutional machinery
- This is popularly known as 'President's Rule'.

Grounds of imposition:

- Article 356 empowers the President to issue a proclamation if he is satisfied that a situation has arisen in which the government of a state cannot be carried on in accordance with the provisions of the constitution.
- Article 365 says that whenever a state fails to comply with or to give effect to any direction from the centre, it will be lawful for the President to hold that a situation has arisen.

Parliamentary approval and duration:

- A proclamation imposing president's rule must be approved by both the houses of parliament within two months from the date of its issue.

Effect of Constitutional Emergency:

The President acquires the following extraordinary powers when the President's rule is imposed in a state:

- He can take up the functions of the state government and powers vested in the governor or any other executive authority in the state.
- He can declare that the powers of the state legislature are to be exercised by the parliament.
- He can take all other necessary steps including the suspension of the constitutional provisions relating to anybody or authority in the state.

3. Financial Emergency:

- Article 360
- due to a threat to the financial stability or credit of India.

Grounds of declaration:

- Article 360 empowers the president to proclaim a Financial Emergency if he is satisfied that a situation has arisen due to which the financial stability or credit of India or any part of its territory is threatened.

Parliamentary approval and duration:

- A proclamation declaring financial emergency must be approved by both the Houses of Parliament within two months from the date of its issue.

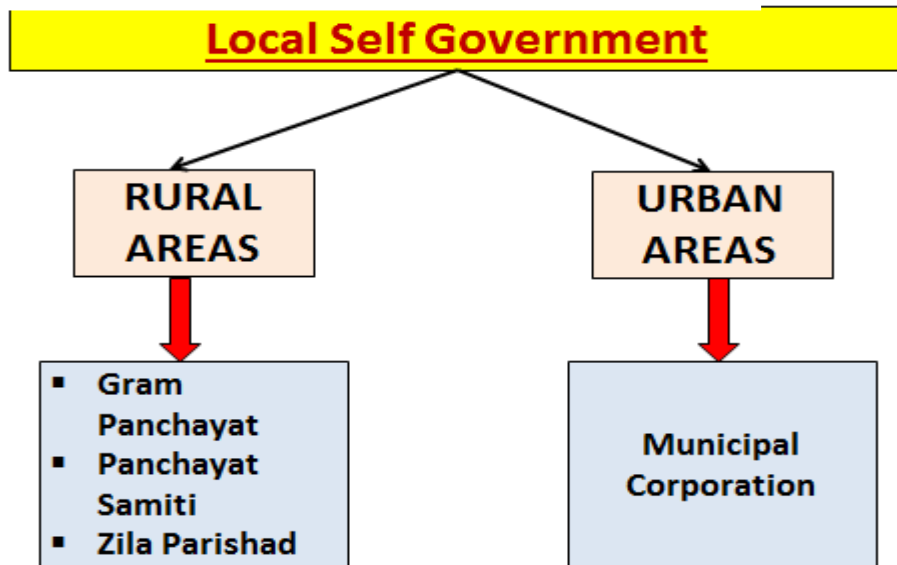
Effects of Financial Emergency:

- Extension of the executive authority of the Union over the financial matters of the States.
- **Reduction of salaries** and **allowances** of all or any class of persons serving in the State.
- Reservation of **all money bills** or **other financial bills** for the consideration of the President after they are passed by the legislature of the State.
- Direction from the President for the reduction of salaries and allowances of all or any class of persons serving the Union; and the judges of the Supreme Court and the High Courts.

Criticism of the Emergency Provision:

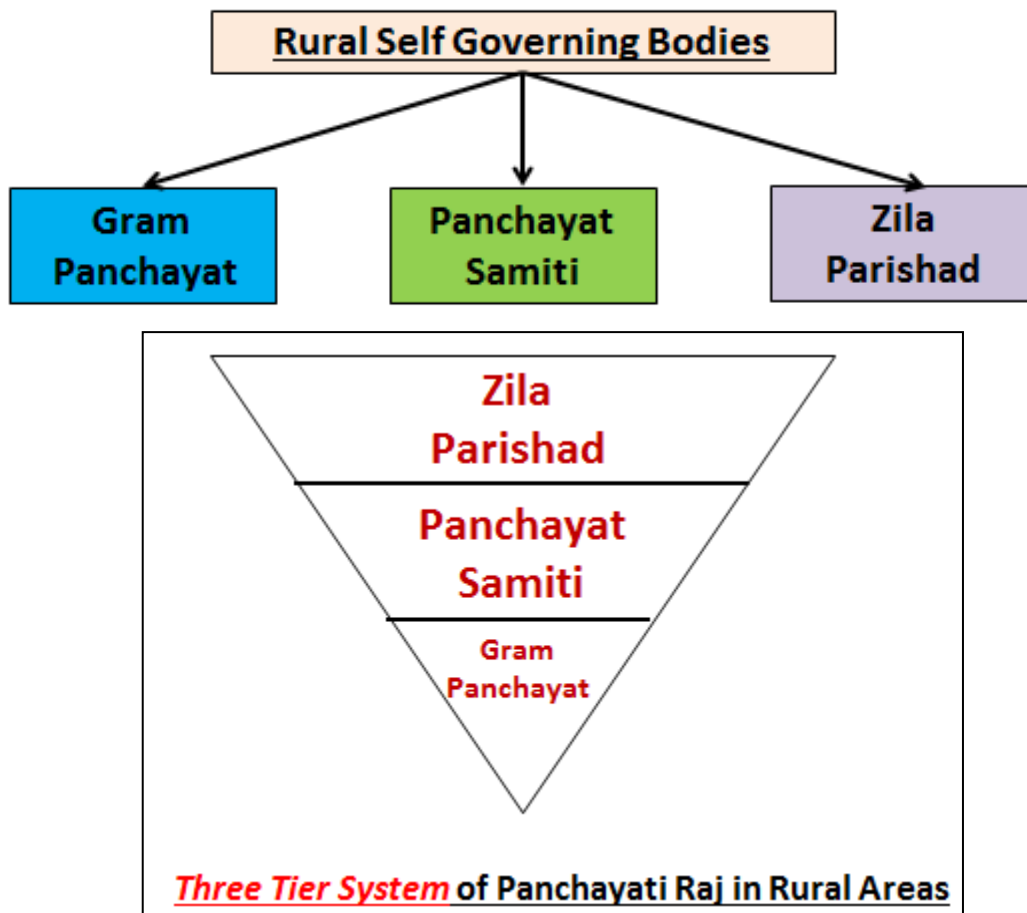
Some members of the Constituent Assembly criticized the incorporation of emergency provisions in the constitution on the following grounds:

- The federal character of the constitution will be destroyed and the union will become all-powerful
- The powers of the State- both the Union and the Units- will entirely be concentrated in the hands of the union executive.
- The president will become a dictator.
- The financial autonomy of the state will be nullified
- Fundamental rights will become meaningless and, as a result, the democratic foundation of the constitution will be destroyed.



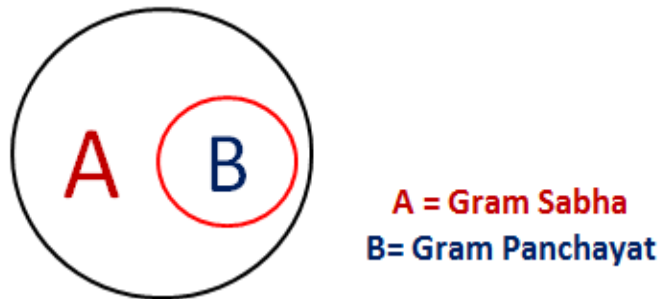
Local Self Government

- It is an Institution comprising of locally elected representatives managing the affairs of the locality & providing them with basic amenities.
- In Rural areas such an institution is called as Gram Panchayat & in Urban areas it is known as Municipal Corporation or Municipality.



1. Gram Panchayat:

- 'Gram Panchayat' is the Executive body of the Gram Sabha. It ensures that constitution makers dream of 'Gram Swaraj'.
- The 'Gram Sabha' is the centre of Self-governance at the village level. It ensures direct & participative Democracy.



Composition, Election & Term

❖ **Composition:**

- Sarpanch/Pradhan (President) &
- Vice-President of the Gram
- Sabha are Ex-Officio members of Gram Panchayat.
- They are assisted by 5-31 panchayat members.

❖ **Election:**

- The members of Gram Panchayat are elected by the Gram Sabha.

❖ **Term:**

- 5 years
- In the case of dissolution election would be compulsorily held within Six months.

Qualification & Reservation

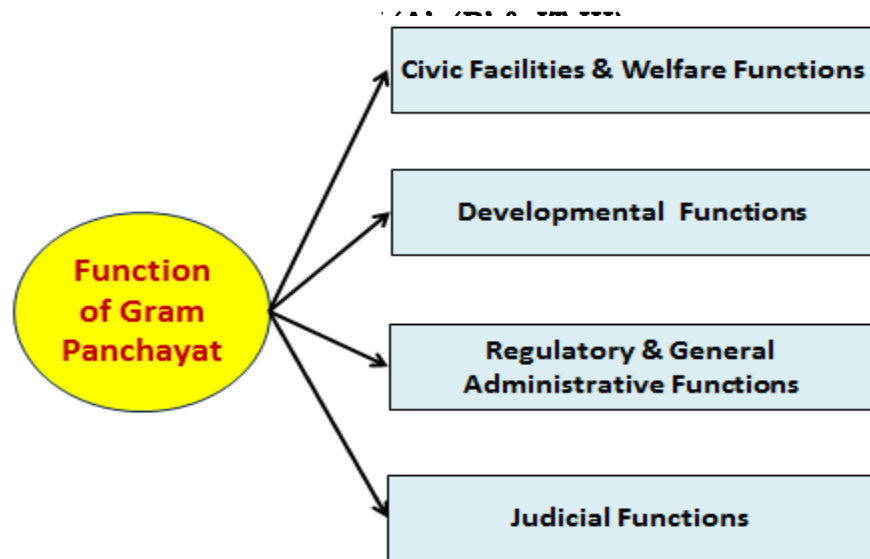
❖ **Qualification:**

Only those people can become members of Gram Panchayat who is:

- 21+ years age
- Registered voter of the constituency
- Mentally Sound
- He should not be a convict/criminal
- He should not be disqualified under any law made by State or Union Legislature.
- He should not hold any office of Profit under Govt. of India.

❖ **Reservation:**

- Seats will be reserved for SC/ST & Women.



I. Civic Facilities & Welfare Functions:

- Primary & Secondary Education
- Road, Footpath, Drainage, Street lights etc..
- Welfare Programs for expectant mothers & their babies.
- Welfare Programs for Women, Children & Youth.
- Safe drinking water, well, tanks etc..
- Health centers & Dispensaries

II. Developmental Functions:

- Irrigation & Electrification
- Develop cottage & small-scale industries
- Rural Housing (Specially Poor & needy)
- Vocational Education

III. Regulatory & General Administrative Functions:

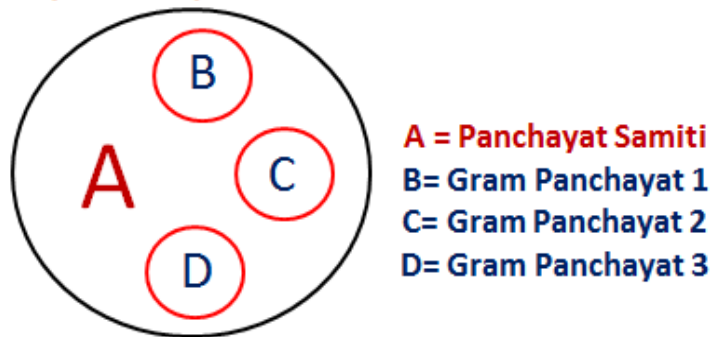
- Registration of Birth, Death & Marriages
- Maintenance of Ward & Watch Services
- Maintenance of the Village's Common Property
- Helping the Govt. to maintain Law & Orders

IV. Judicial Functions:

- Inexpensive & speedy Justice to Villager's.
- It handles only petty civil cases.
- Cases like petty theft, property, cheating, assaults etc.
- They have no power to imprison & can fine only upto Rs.1000

2. Panchayat Samiti (At Block Level)

- It is an intermediate body which coordinates the activities of all Village Panchayats in each Block.
- It has different names in different states. UP (Kshetra Samiti), MP (Janpada Panchayat), Gujarat (Taluka Panchayat), Andhra Pradesh/Maharashtra/Bihar/Odisha (Panchayat Samiti).



Composition, Election & Term

- The Chief Administrative Officer of Panchayat Samiti is known as Block Development Officer (BDO).

❖ Composition:

- Sarpanchs (Presidents) of the Panchayats within the Block,
- BDO, MPs, MLAs, & MLCs of that area, and
- Chairpersons of Town Area Committees or Nagar Panchayats of that area.

❖ Election:

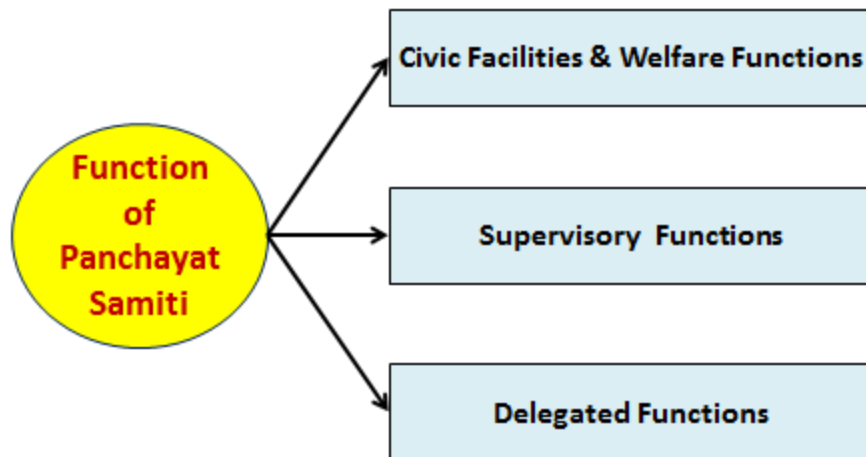
- The Chairperson of Samiti is elected among its own members.

❖ Terms:

- 5 years.
- In the case of dissolution election would be compulsorily held within six months.

Reservation:

- Seats will be reserved for SC/ST
- This is in proportion to their population.
- 1/3rd seats reserved for women. In some states its 50%.



I. Civic Facilities & Welfare Functions

- Rural Health Programme (PHC & CHC),
- Rural Water Supply
- Support Agriculture, Animal Husbandry & Fisheries,
- Rural Employment
- Develop Cottage, Handloom, Handicraft village industries

II. Supervisory Functions

- Supervises the work of Gram Panchayats under it.
- It exercises control over the functioning of Block Development Officer and his assistants.
- Examines the Budget of Gram Panchayats under it.
- Roads, Bridges, Higher Education (secondary level and above), Hospitals, Drinking Water etc.

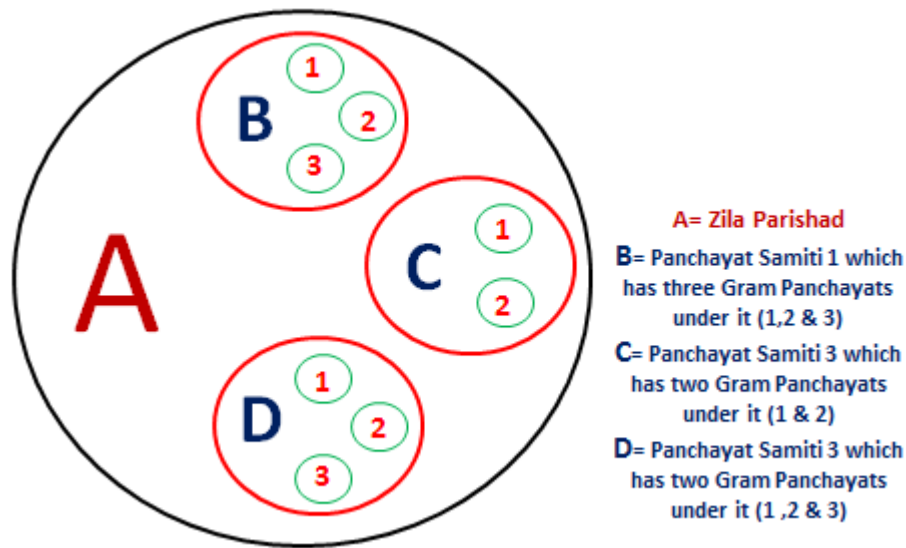
III. Delegated Functions:

- It serves as a link between Gram Panchayat and Zila Parishad.
- Improve overall quality of life in rural areas.
- State governments assign functions to District agencies and then these District agencies assigns functions to Panchayat Samitis.
- To coordinate a number of centrally sponsored schemes with funds shared on 50:50 basis between the Centre and the States.

3. Zila Parishad (At District Level)

- It is an apex (highest) body under Panchyati Raj. It coordinates various activities of the various Panchayat Samitis.

- It is called as **Mohkuma Parishad** in Assam & **District Development Council** in Karnataka & Tamil Nadu.



Composition, Election & Term

❖ **Composition:**

- Pradhans/Chairmen of the Panchayat Samitis within the district.
- BDOs, MPs, MLAs of that district
- One representative from each of the cooperative societies of the district.

❖ **Election:**

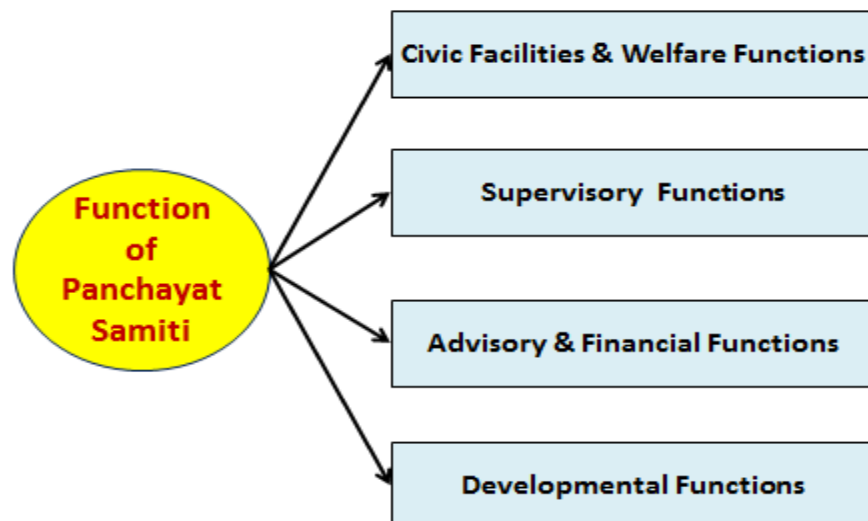
- The Chairperson of Zila Parishad is elected among its own members.

❖ **Terms:**

- 5 years.
- In the case of dissolution election would be compulsorily held within six months.

Reservation:

- Seats will be reserved for SC/ST
- This is in proportion to their population.
- 1/3rd seats reserved for women. In some states its 50%.



I. Civic Facilities & Welfare Functions

- Provide relief during emergencies and to promote welfare schemes for weaker sections of society.
- Maintain and construct Roads, Bridges etc.
- Build library, hospitals, dispensaries, educational institutions etc.
- Develop land, water, human resources of the area.

II. Supervisory Functions:

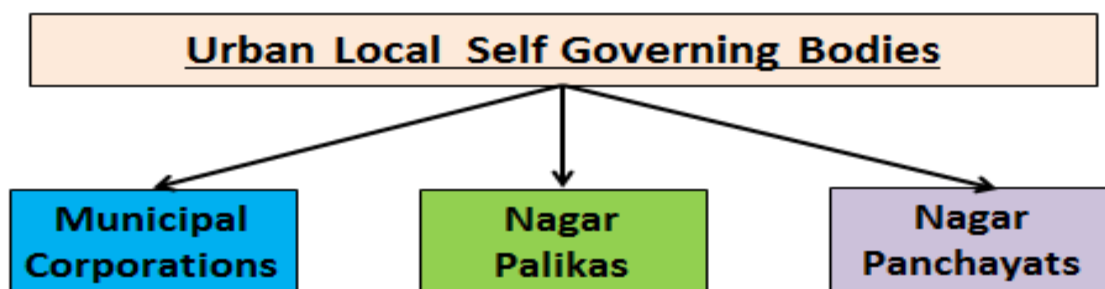
- Supervises the work of Panchayats Samitis under it.
- Examines the Budget of Panchayats Samitis under it.
- Government Promotes e-governance in order to monitor the functioning of Panchayat Samitis.

III. Advisory & Financial Functions:

- Advices State government regarding needs of the people in rural areas.
- It receives funds from Union or State Government which it distributes among the Panchayat Samitis.

IV. Developmental Functions:

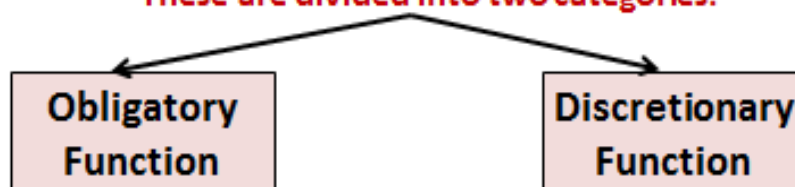
- Introduce programmes to removing poverty
- Irrigation & Electrification
- Public Housing
- Develop industries & employment opportunities



Functions:

- All municipal acts in India provide for functions, powers and responsibilities to be carried out by the municipal government.

These are divided into two categories:





Obligatory Functions:

- Supply of pure and wholesome water
- Construction and maintenance of public streets
- Lighting and watering of public streets
- Cleaning of public streets, places and sewers
- Regulation of offensive, dangerous or obnoxious trades and callings or practices
- Maintenance or support of public hospitals
- Establishment and maintenance of primary schools
- Registration of births and deaths
- Removing obstructions and projections in public streets, bridges and other places
- Naming streets and numbering houses
- Maintenance of law and order

Discretionary Functions:

- Laying out of areas
- Securing or removal of dangerous buildings or places
- Construction and maintenance of public parks, gardens, libraries, museums, rest houses, leper homes, orphanages and rescue homes for women
- Public buildings
- Planting of trees and maintenance of roads
- Housing for low income groups

- Conducting surveys
- Organizing public receptions, public exhibitions, public entertainment
- Provision of transport facilities with the municipality
- Promotion of welfare of municipal employees